

24VECV01614 24VECV01614

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-13

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Case Number: 24VECV01614 Hearing Date: August 13, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

CORY DELPASAND, and NADIA SADAT,

Plaintiff,

vs.

MOHAMAD

ANOUTI; AMN BURNET LLC., and DOES 1 through 10, inclusive,

Defendants.

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CASE NO.: 24VECV01614

ORDER

GRANTING DEFENDANT MOHAMAD ANOUTI'S MOTION TO SET
ASIDE ENTRY OF DEFAULT

I.

BACKGROUND

Plaintiffs Cory

Delpasand and Nadia Sadat (jointly "Plaintiffs") filed this breach of contract
action against Defendants Mohamad Anouti ("Anouti") and AMN Burnet LLC
("Burnett"). Plaintiffs

allege they entered into a Stock Purchase Agreement ("Contract") whereby
Defendant sold the shares in The Green Earth Farmacie, Inc. to Plaintiffs.

Plaintiffs allege Defendants breached the Contract by failing to obtain the Certificates
of Occupancy.

Anouti moves to set

aside default entered against him on January 6, 2026.

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II.

PROCEDURAL

HISTORY

On April 9,
2024, Plaintiffs filed a Complaint alleging 1) Breach of Contract; and 2) Fraud.

On May 15,
2024, Plaintiffs filed a First Amended Complaint ("FAC") alleging 1) Breach Of
Contract; 2) Fraud; 3) Intentional Interference With Prospective Economic
Advantage; and 4) Negligent Intereference With Prospective Economic Advantage.

On April 4,
2025, the Court granted Plaintiffs' application for publication.

On May 30,
2025, Plaintiffs filed proof of publication.

On January 7,
2026, the Court entered default against Anouti.

On March 27,
2026, the Court granted Plaintiffs' ex parte application for order directing
service by delivery to Secretary of State.

On June 8,
2026, the Court entered default against Burnett.

On July 2,
2026, Anouti filed the instant Motion.

As of August
12, 2026, no opposition has been filed. However, the Court notes there may be
issues with service because the Proof of Service attached to the Motion is not
signed and appears to have been effectuated by Anouti himself in violation of
Code of Civil Procedure § 414.10.

III.

LEGAL STANDARD

A.

Discretionary or Mandatory Relief –

Code of Civil Procedure § 473(b)

"The court

may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken..." (Code Civ. Proc. § 473(b).) [1]

Code of Civil

Procedure § 473(b) "provides for both discretionary and mandatory relief. [Citation.]" (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.)

For

discretionary relief, "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473(b).)

A moving

party need only establish "mistake, inadvertence, surprise, or excusable neglect" by a preponderance of the evidence. (Luz v. Lopes (1960) 55 Cal.2d 54, 62.) Excusable neglect exists where counsel or the party acted as a reasonably prudent person would under the circumstances. (See Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206; See also Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258.) Attorney negligence is not a basis for discretionary relief under Code of Civil Procedure § 473. (See Pazderka v. Caballeros Dimas Alang, Inc. (1998) 62 Cal.App.4th 658, 672; see also Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 682.)

An

application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (See Code Civ. Proc. § 473(b); see also English v. IKON Bus. Solutions (2001) 94 Cal.App.4th 130, 143.)

B.

Void Judgment or Order – Code of Civil
Procedure § 473(d)

Code of Civil

Procedure § 473(d) provides, “[t]he court may... on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc. §473(d); see also Zisk v. City of Roseville (1976) 56 Cal.App.3d 41, 47; accord Bastajian v. Brown (1941) 19 Cal.2d 209, 216; Baird v. Smith (1932) 216 Cal. 408, 411.) Once brought to the trial court’s attention, it is error to refuse to set a void order or judgment aside. (See Lovato v. Santa Fe Int’l Corp. (1984) 151 Cal.App.3d 549, 554-555.) “[I]nclusion of the word ‘may’ in the language of section 473, subdivision (d) makes it clear that a trial court retains discretion to grant or deny a motion to set aside a void judgment [or order]. However, the trial court “has no statutory power under section 473, subdivision (d) to set aside a judgment [or order] that is not void....” (Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1020 [internal citations omitted].)

In

determining whether an order is void for purposes of § 473(d), a distinction is made between orders that are void on the face of the record and orders that appear valid on their face but are shown to be invalid by extrinsic evidence. (See id.)

C.

Lack of Actual Notice - Code of Civil
Procedure § 473.5

Code of Civil

Procedure § 473.5 permits the Court to vacate a default when service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him. (See Code Civ. Proc. § 473.5(a).) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years

after entry of a default judgment against him or her; or (ii) 180 days after service... of a written notice that the default or default judgment has been entered." (Id.)

The phrase

actual notice means genuine knowledge and does not include constructive or imputed notice to the client. (See *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.) "A defendant seeking vacation of a default judgment entered against him must further show that his lack of actual notice in time to defend the action was not caused by his inexcusable neglect or avoidance of service." (Id. at 1077-1078, citing Code Civ. Proc. § 473.5(c).) Additionally, "the party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc. § 473.5(b).)

IV.

ANALYSIS

Anouti moves

for relief pursuant to §§ 473(d), 473.5, and 473(b).

A.

Void Order

A judgment

may be void for lack of improper service of summons. A motion for relief from a judgment valid on its face, but void for improper service, must be brought with a "reasonable" time after the default judgment. (See *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 212, 225-226 [disapproving prior authority that applied 2-year time limit to § 473(d) motions to vacate].) In contrast, there is no time limit on a motion for relief under § 473 where it is clear from the face of the record that the judgment should not have been entered. (See *Plotitsa v. Superior Ct. (Kadri)* (1983) 140 Cal.App.3d 755, 761.)

Anouti argues

the entry of default against him is void because Plaintiffs failed to exercise reasonable diligence before serving him by publication. (See Mot. at 6:16-20.) Anouti contends Plaintiffs' showing of reasonable diligence comprises attempted service at two units he did not occupy, one unit he vacated in

November 2021, and another unit where he never resided. (See Declaration of Mohamad Anouti filed July 2, 2026 ("Anouti Decl."), ¶¶ 3-5, 9.) Anouti argues Plaintiffs' investigator had information including potential current addresses and phone numbers they did not explore as service avenues. (See id., ¶ 9) Anouti also contends Plaintiffs were concurrently involved in another action with Burnett and thus Plaintiffs' counsel could have asked Burnett's counsel in that action to accept service under § 415.30 on behalf of Burnett's manager, Anouti, or at least advised him of this action. (See Mot., at 6:21-27; Anouti Decl., ¶¶ 13-15)

The Court

finds the entry of default is void due to improper service of summons. After reviewing the service attempts documented in Plaintiffs' Application for Publication, the Court finds Anouti's evidence shows the entry of default is void because Plaintiffs' publication order rested on an inadequate diligence showing. Anouti's evidence shows Plaintiffs could have reached Anouti at a possible current address, as listed in Plaintiffs' skip tracing report, contacted Anouti at the phone numbers listed in the skip tracing report to confirm his address, or communicated to Burnett's counsel in the parties' ongoing action about this action.

Thus, the

Court GRANTS Anouti's Motion to Set Aside Entry of Default. Accordingly, the Court will not address whether Anouti is entitled to relief pursuant to § 473(b) or 473.5.

V.

CONCLUSION

Based on the

foregoing, the Court GRANTS Anouti's Motion to Set Aside Entry of Default.

IT

IS SO ORDERED.

DATED: August 13, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.